

## 7.35.3 NMAC: proposed amendments outside the practicum. 2 of 4, Educational programs

Working draft v1, July 26, 2026. Rule hearing August 28, 2026. Not a filing, not submitted, and not adopted rule text.

- 7.35.3.10, .12, .15, .16 and .17. The third-party evaluator conflict, the out-of-jurisdiction pathway, and the reporting and consultation obligations.
- This is one of four documents covering the twenty-four sections of 7.35.3 NMAC that the practicum amendment draft in *amendments/* does not reach. That draft covers 7.35.3.14, .18, .19, Paragraph (5) of Subsection H of .20, and a proposed .29, and nothing here reopens any of them.
- Every proposed change carries a citation to the provision, source document, or transcript it comes from. Where a defect has no fix that a source supplies, the published text is left exactly as it stands and the question is stated at that provision, with the choices and who decides.
- No figure appears in a right column unless a source carries it. A figure taken from elsewhere in the rule is badged with where it comes from.

**The columns.** Left is the rule as published, verbatim. Right is the proposed amendment: underlined green inserted, ~~struck red deleted~~, unmarked text carried forward unchanged.

**60 from 7.35.3.15 B** marks a figure taken from another provision of the same rule rather than newly drafted. A provision shown with no amendment is reproduced because it carries a finding.

### 7.35.3.10 Application process based on educational programs from other jurisdictions

2 OF 4 · EDUCATIONAL PROGRAMS

#### CURRENT LANGUAGE

Proposed rule as published July 23, 2026

#### Paragraph (2) of Subsection A, additions to the list

(2) Educational programs shall be added to the list when an application for certification as a certifying clinician, practitioner, or facilitator is submitted and approved based on the applicant's completion of the out-of-state educational program.

#### PROPOSED AMENDMENT

Draft for review. Not filed, not adopted

#### Paragraph (2) of Subsection A, additions to the list

*Not amended. This provision is reproduced because it carries a finding recorded below.*

SOURCE Not amended. Recorded for the sequence it creates. 7.35.3.10 NMAC Paragraph (2) of Subsection A, page 4, is the only route by which a program reaches the list. Carried over from the July 9, 2026 draft, where the section was titled "RECIPROCITY FOR CERTIFYING CLINICIANS, PRACTITIONERS AND FACILITATORS".

**Please review.** A program reaches the list only when an individual application relying on that program is approved, and an application filed on or after January 1, 2028 needs either a third-party evaluation or a program already on the list. On the first day the list is empty, so the first applicants must supply an evaluation, and finding M6 of `analysis/july23-rule-concerns.md` records that the list can only populate after the fact. Two choices. Leave the paragraph as published and rely on the amendment drafted at Paragraph (2) of Subsection B of this section, which lets an applicant point to the list once a program is on it, or add a route by which the department may place a program on the list on its own initiative. The second is a new grant of authority and no source in this record proposes its terms, so it is not drafted. The Training and Education Committee decides whether to ask for it, and Department of Health staff decide its terms.

**CURRENT LANGUAGE**

Proposed rule as published July 23, 2026

**PROPOSED AMENDMENT**

Draft for review. Not filed, not adopted

**Paragraph (2) of Subsection B, documentation of equivalency**

(2) Documentation of either: (a) Completion of a government approved psilocybin educational program from another jurisdiction, which shall include: (i) Documentation that the curriculum of the educational program is equivalent to the didactic educational requirements applicable for New Mexico certification; and (ii) For all applications received on or after January 1, 2028, documentation of a third-party evaluation of the curriculum demonstrating such equivalency; (b) Completion of a psilocybin educational program from another jurisdiction that is developed in collaboration with higher education institutions or government-approved psychedelic research studies, which shall include: (i) Documentation that the curriculum of the educational program is equivalent to the didactic educational requirements applicable for New Mexico certification, and (ii) For all applications received on or after January 1, 2028, documentation of a third-party evaluation of the curriculum demonstrating such equivalency; or (c) Completion of an educational program that is currently included on the list of department-approved psilocybin educational programs from other jurisdictions.

**Paragraph (2) of Subsection B, documentation of equivalency**

(2) Documentation of either: (a) Completion of a government approved psilocybin educational program from another jurisdiction, which shall include: (i) Documentation that the curriculum of the educational program is equivalent to the didactic educational requirements applicable for New Mexico certification; and (ii) For all applications received on or after January 1, 2028, documentation of a third-party evaluation of the curriculum demonstrating such equivalency, except that an applicant may satisfy this item by documenting that the educational program is included on the list maintained under Subsection A of this section; (b) Completion of a psilocybin educational program from another jurisdiction that is developed in collaboration with higher education institutions or government-approved psychedelic research studies, which shall include: (i) Documentation that the curriculum of the educational program is equivalent to the didactic educational requirements applicable for New Mexico certification, and (ii) For all applications received on or after January 1, 2028, documentation of a third-party evaluation of the curriculum demonstrating such equivalency, except that an applicant may satisfy this item by documenting that the educational program is included on the list maintained under Subsection A of this section; or (c) Completion of an educational program that is currently included on the list of department-approved psilocybin educational programs from other jurisdictions.

SOURCE Conforming amendment. Items (a)(ii) and (b)(ii) of 7.35.3.10 NMAC Paragraph (2) of Subsection B, page 4, require an individual applicant to produce a third-party evaluation of a curriculum. Under 7.35.3.16 NMAC Subsection A, page 10, a third-party evaluation is commissioned by a psilocybin educational program, not by an individual. Item (c) of the same paragraph already lets an applicant rely on the list maintained under Subsection A, and this amendment extends that route to items (a)(ii) and (b)(ii). No figure is added.

**CURRENT LANGUAGE**

Proposed rule as published July 23, 2026

**PROPOSED AMENDMENT**

Draft for review. Not filed, not adopted

**Subsection C, re-application after denial**

C. Application approval and denial; certification period: If the application is approved, the certification shall be effective on the date of notice and shall be valid for two years. If the department denies an application, the department shall provide notice of the denial in accordance with this rule. If the application is denied, the applicant may re-apply within six months. An applicant who is denied a second time may not re-apply for six months from the denial. An applicant whose application is denied may appeal the denial in accordance with this rule.

**Subsection C, re-application after denial**

C. Application approval and denial; certification period: If the application is approved, the certification shall be effective on the date of notice and shall be valid for two years. If the department denies an application, the department shall provide notice of the denial in accordance with this rule. If the application is denied, the applicant may re-apply ~~within~~ **no earlier than** six months **after the date of the denial**. An applicant who is denied a second time may not re-apply for six months from the denial. An applicant whose application is denied may appeal the denial in accordance with this rule.

SOURCE Conforming amendment, one of four in the rule. 7.35.3.10 NMAC Subsection C, page 4, reads “the applicant may re-apply within six months”, which on its face sets a deadline. The next sentence of the same subsection reads “An applicant who is denied a second time may not re-apply for six months from the denial”, which sets a waiting period. The amendment conforms the first sentence to the second. The same pair appears at 7.35.3.9 NMAC Paragraphs (5) and (6) of Subsection A, page 2; 7.35.3.11 NMAC Subsection D, page 7; and 7.35.3.12 NMAC Subsection D, page 8. All four are drafted the same way in this document. No figure is added.

**Please review.** The amendment reads the six months as a waiting period, because the following sentence of the same subsection sets a waiting period for a second denial and the two sentences otherwise contradict each other. The other reading is that a denied applicant has six months in which to re-apply and loses the right afterwards. Finding M21 of `analysis/july23-rule-concerns.md` records the ambiguity. Department of Health staff decide which reading was intended, and the same answer governs all four places the sentence appears.

| CURRENT LANGUAGE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | PROPOSED AMENDMENT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Proposed rule as published July 23, 2026                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              | Draft for review. Not filed, not adopted                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <p><b>Subsection D, re-application after denial</b></p> <p>D. Approval and denial; certification period: If the application is approved, the certification shall be effective on the date of notice and shall be valid for two years. If the department denies an application, the department shall provide notice of the denial in accordance with this rule. If the application is denied, the applicant may re-apply within six months. An applicant who is denied a second time may not re-apply for six months from the denial. An applicant whose application is denied may appeal the denial in accordance with this rule.</p> | <p><b>Subsection D, re-application after denial</b></p> <p>D. Approval and denial; certification period: If the application is approved, the certification shall be effective on the date of notice and shall be valid for two years. If the department denies an application, the department shall provide notice of the denial in accordance with this rule. If the application is denied, the applicant may re-apply <del>within</del> <b>no earlier than</b> six months <b>after the date of the denial</b>. An applicant who is denied a second time may not re-apply for six months from the denial. An applicant whose application is denied may appeal the denial in accordance with this rule.</p> <p>-----</p> <p>SOURCE Conforming amendment. Same defect and same fix as 7.35.3.10 NMAC Subsection C. 7.35.3.12 NMAC Subsection D, page 8. Carried over from the July 9, 2026 draft.</p> |

**CURRENT LANGUAGE**

Proposed rule as published July 23, 2026

**PROPOSED AMENDMENT**

Draft for review. Not filed, not adopted

**Subsection A, required reporting of updates**

A. Required reporting of updates: A department-certified psilocybin educational program shall notify the department, through the department-approved electronic system designated by the department, of any of the following changes, and shall not implement the change until written approval is issued by the department: (1) Any revision to the program's curriculum; revised curricula shall be submitted to the department for review and may not be implemented until the department grants approval; (2) Any change in ownership, including changes in controlling interest or organizational structure; (3) Any change in physical locations utilized for instruction or educational activities; (4) Any modification, termination, or addition of practicum site agreements; and (5) Any change in instructional staff, including submission of curricula vitae or résumés for all newly added instructors.

**Subsection A, required reporting of updates**

A. Required reporting of updates: A department-certified psilocybin educational program shall notify the department, through the department-approved electronic system designated by the department, of any of the following changes, and shall not implement the change until written approval is issued by the department. The department shall notify the program of its approval or denial of a change reported under this subsection within 60 calendar days of receiving the report 60 from 7.35.3.15 B: (1) Any revision to the program's curriculum; revised curricula shall be submitted to the department for review and may not be implemented until the department grants approval; (2) Any change in ownership, including changes in controlling interest or organizational structure; (3) Any change in physical locations utilized for instruction or educational activities; (4) Any modification, termination, or addition of practicum site agreements; and (5) Any change in instructional staff, including submission of curricula vitae or résumés for all newly added instructors.

SOURCE The 60 calendar days are taken from 7.35.3.15 NMAC Subsection B, page 9, which gives the department 60 calendar days to decide a curriculum approval application. No new figure is introduced. Subsection A as published bars a program from implementing a reported change "until written approval is issued by the department" and sets no period within which the department must act. Carried over from the July 9, 2026 draft.

**Please review. Finding M8 of `analysis/july23-rule-concerns.md`. Until the department approves, a program may not replace an instructor who has resigned, change a practicum site, or move a classroom, and the rule as published binds the department to no period. The 60 calendar days drafted here are the period the rule already sets for curriculum approval in Subsection B of this section, and no source in this record proposes a period for this subsection. Three choices. Adopt the 60 days by analogy as drafted, set a shorter period for changes that do not touch curriculum, or provide that a reported change may be implemented if the department does not act within the period. Department of Health staff decide, because the period binds the department.**

**CURRENT LANGUAGE**

Proposed rule as published July 23, 2026

**PROPOSED AMENDMENT**

Draft for review. Not filed, not adopted

**Section heading and Subsection A, general requirements**

7.35.3.16 REQUIREMENTS FOR THIRD-PARTY EVALUATORS OF EDUCATIONAL PROGRAMS: A. General requirements: A psilocybin educational program shall engage a qualified third-party evaluation team to conduct the evaluations required under this rule. The evaluation team shall consist of no fewer than three individuals who collectively meet all competency requirements set forth in this section.

**Section heading and Subsection A, general requirements**

7.35.3.16 REQUIREMENTS FOR THIRD-PARTY EVALUATORS OF EDUCATIONAL PROGRAMS: A. General requirements: A psilocybin educational program shall engage a qualified third-party evaluation team to conduct the evaluations required under this rule. The evaluation team shall consist of no fewer than three individuals who collectively meet all competency requirements set forth in this section. A program may compensate the evaluation team for conducting an evaluation required under this rule, and that compensation is not a conflict of interest under Subsection C of this section.

SOURCE Finding B3 of `analysis/july23-rule-concerns.md`, verified against the published rule. 7.35.3.16 NMAC Subsection A, page 10, requires that a program “shall engage a qualified third-party evaluation team”. Item (b) of Paragraph (2) of Subsection C of the same section, page 10, disqualifies an evaluator for “receiving compensation from... the program or organization being evaluated”, with no exception for the engagement itself. The amendment states that the engagement fee is not a disqualifying conflict. Both provisions are carried over from the July 9, 2026 draft. On why the evaluation exists, the July 17, 2026 Training and Education Committee transcript records that programs “also will have a need to have that third-party evaluation that’s looking to ensure that the curriculum is implemented with fidelity”.

**Please review.** The amendment cures the conflict by naming the engagement fee as something other than a disqualifying conflict. One alternative is to place the same words in item (b) of Paragraph (2) of Subsection C instead, and this document drafts that too so that the committee can adopt either or both. A second alternative is to have the department, rather than the program, engage and pay the team, which would remove the conflict entirely but requires a funding source that no document in this record identifies. The Training and Education Committee decides which route to send forward, and Department of Health staff decide whether the second is available.

**CURRENT LANGUAGE**

Proposed rule as published July 23, 2026

**PROPOSED AMENDMENT**

Draft for review. Not filed, not adopted

**Paragraph (2) of Subsection B, minimum qualifications**

B. Minimum qualifications: Each evaluator shall possess at least three years of professional experience in one or more of the following fields, and the evaluation team as a whole shall demonstrate expertise covering all listed domains: (1) Psilocybin therapy practice, supported by a master's or doctoral degree in counseling, therapy, social work, public health, behavioral health, or a closely related field; (2) Medical and research practice, supported by a master's or doctoral degree in medicine, pharmacy, nursing, or another related clinical or scientific field; and (3) Educational curriculum development and evaluation, supported by a master's or doctoral degree in education, educational psychology, or a closely related field.

**Paragraph (2) of Subsection B, minimum qualifications**

B. Minimum qualifications: Each evaluator shall possess at least three years of professional experience in one or more of the following fields, and the evaluation team as a whole shall demonstrate expertise covering all listed domains: (1) Psilocybin therapy practice, supported by a master's or doctoral degree in counseling, therapy, social work, public health, behavioral health, or a closely related field; (2) Medical ~~and~~ **or** research practice, supported by a master's or doctoral degree in medicine, pharmacy, nursing, or another related clinical or scientific field; and (3) Educational curriculum development and evaluation, supported by a master's or doctoral degree in education, educational psychology, or a closely related field.

SOURCE Restoration. The July 9, 2026 draft read "Medical or research practice". The published rule at 7.35.3.16 NMAC Paragraph (2) of Subsection B, page 10, reads "Medical and research practice". On the published wording an evaluator in this domain needs both medical and research practice; on the July 9 wording either will do. The amendment restores the July 9 wording.

**Please review. Finding M10 of `analysis/july23-rule-concerns.md`. Two questions sit on this paragraph. First, whether the change from "or" to "and" between the July 9 and July 23 drafts was deliberate. Two choices follow from the answer: keep the amendment, which restores the July 9 wording, or withdraw it if the narrowing was intended. Department of Health staff decide, because only the department knows whether the change was made on purpose. Second, whether a three-person team can in fact cover all three domains at three years of experience each in New Mexico. Two choices there as well: leave the standard as published, or lower it. No source in this record proposes a lower standard, so none is drafted. The Training and Education Committee decides whether to ask for one, because the committee is the body that will hear from programs that cannot find a qualifying team.**

**CURRENT LANGUAGE**

Proposed rule as published July 23, 2026

**PROPOSED AMENDMENT**

Draft for review. Not filed, not adopted

**Subsection C, conflict of interest prohibitions**

C. Conflict of -interest prohibitions: (1) All evaluators shall be free from actual or perceived conflicts of interest regarding the organization or curriculum under review. (2) The following conflicts, at minimum, shall disqualify an individual from serving as an evaluator: (a) Participation in the design, development, or teaching of the curriculum being evaluated; or (b) Holding a financial interest in, receiving compensation from, or serving in any governance or advisory capacity with the program or organization being evaluated.

**Subsection C, conflict of interest prohibitions**

C. Conflict ~~of -interest~~ **of-interest** prohibitions: (1) All evaluators shall be free from actual or perceived conflicts of interest regarding the organization or curriculum under review. (2) The following conflicts, at minimum, shall disqualify an individual from serving as an evaluator: (a) Participation in the design, development, or teaching of the curriculum being evaluated; or (b) Holding a financial interest in, receiving compensation from, or serving in any governance or advisory capacity with the program or organization being evaluated, **other than compensation for conducting an evaluation required under this rule as provided in Subsection A of this section.**

SOURCE Two changes. Correction: the heading at 7.35.3.16 NMAC Subsection C, page 10, reads "Conflict of -interest prohibitions"; the July 9, 2026 draft read "Conflict-of-interest prohibitions". Substance: the carve-out for the engagement fee, consequential on the amendment to Subsection A of the same section. Finding B3.



**CURRENT LANGUAGE**

Proposed rule as published July 23, 2026

**PROPOSED AMENDMENT**

Draft for review. Not filed, not adopted

**Subsection A, mentoring sessions**

A. All educational programs shall provide each practitioner and facilitator student with a minimum of 10 hours of mentoring sessions after graduation and after practicum hours are completed. The purpose of the mentoring sessions is to allow new graduates to consult with the educational program faculty regarding cases, patients, situations, and how they handle them. These mentoring sessions may not have additional associated charges beyond the cost of the educational program itself. The 10 hours are valid for up to 12 months after practicum hours are completed. If students request more than 10 hours of mentoring sessions, this will be at the purview of the educational program and may have an additional associated cost.

**Subsection A, mentoring sessions**

*Not amended. This provision is reproduced because it carries a finding recorded below.*

SOURCE Not amended. 7.35.3.17 NMAC Subsection A, pages 10 and 11, carried over from the July 9, 2026 draft. The Wilson working redline of July 25, 2026 rewrites this subsection: it retitles the section heading to read "CASE-CONSULTATION" in place of "MENTORING", replaces the 10 hours with "2 student case" consultations, adds that "Case presentations under consultation shall include discussion of individual case concerns, risk factors, supportive factors, treatment considerations, and recommendations for aftercare.", and strikes the last two sentences of the subsection. Her comment on the strike reads "want to keep this in or strike it? Would change hours to cases." and her comment on the added sentence reads "This probably does not need to live in regulation but can be part of a program guide for educational programs DOH could host and update regularly". This document draws no figure and no text from the redline here, because the placement of the consultation requirement is an open question in the practicum amendment document.

**Please review. This subsection is left exactly as published, deliberately. The Wilson working redline would change the obligation from 10 hours of mentoring to 2 student case consultations, and the practicum amendment document holds open, for Dr. Metz, Ms. Wilson and Dr. Leeman, whether the consultation requirement is stated in hours, in cases, or in both, and whether it belongs at the proposed Subsection H of 7.35.3.19 NMAC, which exists only in that draft's re-lettering of that section, or at Subsection A of this section. As published, 7.35.3.19 NMAC runs A through G and has no Subsection H. Drafting either figure here would answer that question, so neither is drafted. Two choices, and they are theirs: state the requirement here, in which case this subsection is redrafted and the proposed 7.35.3.19 H carries a cross-reference, or state it at the proposed 7.35.3.19 H, in which case this subsection is struck. Dr. Metz, Ms. Wilson and Dr. Leeman decide which, and this section should be redrafted once they do. Findings M11 and M12 of `analysis/july23-rule-concerns.md` record the separate points that the obligation is unfunded and survives the program.**

**CURRENT LANGUAGE**

Proposed rule as published July 23, 2026

**PROPOSED AMENDMENT**

Draft for review. Not filed, not adopted

**Subsection B, module evaluation without attendance**

B. Educational programs shall offer an option for a student to complete the evaluation for each educational module (not including the New Mexico module) without attending the lessons or classes for the module. The cost to complete the evaluation for each module shall not be greater than one-fourth of the normal price of each of the educational modules. If the student receives a passing grade for a module evaluation, they will have been considered to have completed the module; and if a student does not receive a passing grade for a module evaluation, they will not have completed the module. The educational program may at its discretion allow students to re-take the evaluation without attending the lessons or classes for the modules. Students who utilize this option shall complete all other requirements for the educational program, including the New Mexico Module, certifications, simulated patient, and practicum requirements to graduate from the educational program.

**Subsection B, module evaluation without attendance**

*Not amended. This provision is reproduced because it carries a finding recorded below.*

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SOURCE Not amended. 7.35.3.17 NMAC Subsection B, page 11, carried over from the July 9, 2026 draft. The Wilson working redline of July 25, 2026 strikes the whole subsection, and her comment on it reads "Strike, right? I don't think we want this test out provision."

**Please review. Finding M12 of `analysis/july23-rule-concerns.md`: the price cap is stated as a fraction of the "normal price of each of the educational modules", which assumes that programs price modules separately rather than pricing the program as a whole. Two choices. Strike the subsection, as the Wilson working redline proposes, or keep it and restate the cap so that it works for a program with a single price. No source in this record supplies a restated cap, so none is drafted. The Training and Education Committee decides whether the option survives at all, and only then is a restated cap worth drafting.**

## Addendum A Terms this part uses and no part defines

7.35.3.7 NMAC provides in full: "The definitions in 7.35.2.7 NMAC apply to this part." Every count in the table below is produced from the text layer of the published rule and of 7.35.2 NMAC each time this document is built, section by section, so no count in it is transcribed by hand. Column headings are section numbers within each part. The first block is terms used in 7.35.3 NMAC that 7.35.2.7 NMAC does not define. The second block, shaded, is the terms 7.35.2.7 NMAC does define, shown for contrast.

### Addendum A

### TERMS THIS PART USES AND NO PART DEFINES

| Term in 7.35.3 NMAC                           | 1 | 2 | 3 | 4 | 5 | 6 | 7 | 8  | 9 | 10 | 11 | 12 | 13 | 14 | 15 | 16 | 17 | 18 | 19 | 20 | 21 | 22 | 23 | 24 | 25 | 26 | 27 | 28 | Part 3 | Part 2 |
|-----------------------------------------------|---|---|---|---|---|---|---|----|---|----|----|----|----|----|----|----|----|----|----|----|----|----|----|----|----|----|----|----|--------|--------|
| educational program                           | 1 |   |   |   |   | 1 |   |    |   | 28 |    | 7  |    |    | 3  | 3  | 13 | 1  | 2  | 1  | 3  |    |    |    |    | 1  | 3  |    | 68     | 0      |
| facilitator                                   | 1 |   |   |   |   | 1 |   |    | 5 | 5  | 3  | 1  | 14 | 5  |    |    | 2  | 15 | 4  | 3  |    |    |    |    |    | 1  | 4  |    | 65     | 0      |
| healing center                                | 1 |   |   |   |   |   |   |    |   |    | 10 | 1  | 2  | 10 |    |    |    |    | 1  | 21 | 3  |    |    |    |    | 1  | 3  |    | 54     | 0      |
| certifying clinician                          |   |   |   |   |   | 1 |   | 16 | 5 | 4  |    |    | 11 |    |    |    |    | 10 |    |    |    |    |    |    |    | 1  | 4  |    | 53     | 0      |
| other approved location                       | 1 |   |   |   |   |   |   |    |   |    | 6  |    | 1  | 3  |    |    |    |    | 1  | 14 | 3  |    |    |    |    | 1  | 3  |    | 34     | 0      |
| practicum                                     |   |   |   |   |   |   |   |    | 3 | 4  |    | 1  |    |    | 1  |    | 5  |    | 13 | 2  |    |    |    |    |    |    |    |    | 29     | 0      |
| student                                       |   |   |   |   |   |   |   |    |   |    |    | 5  |    |    |    | 3  | 12 |    | 5  | 3  |    |    |    |    |    |    |    |    | 28     | 0      |
| certificant                                   |   |   |   |   |   |   |   |    |   |    |    |    |    |    |    |    |    |    |    |    | 2  | 3  | 3  | 2  |    |    | 1  |    | 11     | 0      |
| registrant                                    |   |   |   |   |   |   |   |    |   |    |    |    |    |    |    |    |    |    |    | 10 |    |    |    |    |    |    |    |    | 10     | 0      |
| didactic                                      |   |   |   |   |   |   |   |    |   | 4  |    |    |    |    |    |    |    | 4  | 2  |    |    |    |    |    |    |    |    |    | 10     | 0      |
| adverse health event                          |   |   |   |   |   |   |   |    |   |    | 1  |    | 1  |    |    |    |    |    |    | 4  |    |    |    |    |    |    |    |    | 6      | 0      |
| administrative review committee               |   |   |   |   |   |   |   |    |   |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    | 4  |    |    |    | 4      | 0      |
| graduate                                      |   |   |   |   |   |   |   |    |   |    |    | 1  |    |    |    |    | 2  |    | 1  |    |    |    |    |    |    |    |    |    | 4      | 0      |
| simulated patient                             |   |   |   |   |   |   |   |    |   |    |    |    |    |    |    |    | 1  | 2  | 1  |    |    |    |    |    |    |    |    |    | 4      | 0      |
| medical psilocybin services                   |   |   |   |   |   |   |   |    |   |    |    |    | 1  |    |    |    |    | 1  |    | 1  |    |    |    |    |    |    |    |    | 3      | 0      |
| equity and access fund                        |   |   |   |   |   |   |   | 1  |   |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    | 1      | 0      |
| <b>Defined in 7.35.2.7 NMAC, for contrast</b> |   |   |   |   |   |   |   |    |   |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |        |        |
| practitioner                                  | 1 |   |   |   |   | 1 |   |    | 5 | 5  | 3  | 1  | 12 | 6  |    |    | 2  | 14 | 6  | 3  |    |    |    |    |    | 1  | 5  |    | 66     | 12     |
| clinician                                     | 1 |   |   |   |   |   | 5 |    |   |    |    |    | 4  |    |    |    |    |    |    |    |    |    |    |    | 1  |    | 2  |    | 13     | 4      |
| qualified patient                             |   |   |   |   |   | 1 |   | 3  |   |    | 2  |    | 4  | 3  |    |    |    |    | 3  |    | 3  |    |    | 1  |    | 1  | 1  |    | 22     | 6      |
| administration session                        |   |   |   |   |   |   |   |    |   |    | 5  |    |    | 3  |    |    |    | 1  |    | 7  |    | 1  |    |    |    |    |    |    | 17     | 4      |
| approved location                             | 1 |   |   |   |   | 1 |   |    |   |    | 6  | 1  | 1  | 3  |    |    |    |    | 1  | 15 | 3  |    |    |    |    | 1  | 3  |    | 37     | 2      |
| guide                                         |   |   |   |   |   |   |   |    |   |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    | 0      | 3      |

**What the table shows.** Sixteen terms carrying regulatory consequence in this part are defined in neither part. Four of them are defined in the draft at 7.35.3.7 NMAC, because a single provision of the published rule supplies the content: certificant, facilitator, registrant of another approved location, and student. Twelve are not, and the two largest are healing center and certifying clinician. "Guide", the one defined term in 7.35.2.7 NMAC for an individual who assists practitioners during administration sessions, appears nowhere in 7.35.3 NMAC, while "facilitator", which 7.35.2.7 NMAC does not define, appears throughout it. 7.35.2 NMAC was adopted effective June 23, 2026, so amending 7.35.2.7 NMAC is a separate rulemaking and any term this part needs has to be carried in this part.

**The Act.** Section 3(B) of the Medical Psilocybin Act defines a clinician as an approved health care provider licensed in New Mexico who holds a permit from the department to provide medical services to qualified patients. 7.35.2.7 NMAC defines "Clinician" in the same terms except that it reads certification where the Act reads permit, and defines "Permit" as the authorization to operate as a psilocybin producer or psilocybin testing laboratory. Section 5 of the Act exempts a producer, a clinician and a qualified patient from arrest, prosecution and penalty. Neither the Act nor 7.35.2.7 NMAC uses the word facilitator. The consequence is stated at 7.35.3.7 NMAC in the redline above.

## Addendum B Dependencies across the two drafting scopes

Provisions in these four documents that operate on, or are operated on by, a provision the practicum amendment draft in *amendments/* reaches. Nothing in these documents amends a provision in that draft's scope. Where a fix would require one, it is recorded here and left undrafted.

### Addendum B

### DEPENDENCIES ACROSS THE TWO DRAFTING SCOPES

| Provision here              | Provision in the practicum draft's scope                                          | Relationship                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Handled                                                                                                                                                                                            |
|-----------------------------|-----------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 7.35.3.11 A(11), page 5     | 7.35.3.14 C, page 9                                                               | 7.35.3.14 C conditions healing center owner and employee authority on being registered with the department, and no registration exists. The registration is drafted here, at the point where the healing center already files the names.                                                                                                                                                                                                                                                                                                                                                                                                            | <b>Drafted here. The practicum draft flagged 7.35.3.14 C and did not amend it, and it is not amended here either.</b>                                                                              |
| 7.35.3.7, page 1            | 7.35.3.20 H(5), page 14                                                           | The definition of student drafted here is taken from the qualified student test in 7.35.3.20 H(5). The practicum draft amends that paragraph for the permit title and does not change the test.                                                                                                                                                                                                                                                                                                                                                                                                                                                     | <b>Drafted here, sourced there. If the test changes, the definition follows it.</b>                                                                                                                |
| 7.35.3.7, page 1            | 7.35.3.14 B, page 9                                                               | 7.35.3.14 B authorizes facilitators to possess psilocybin products and provide them to qualified patients. Whether a facilitator is a clinician under Section 3(B) of the Medical Psilocybin Act, and so within the Section 5 exemption, governs whether that authority holds. This is the administering half of Paragraph (2) of Subsection B of Section 5 of the Act. The practicum draft reads the taking half of the same provision against Subsection H of Section 3, and its proposed 7.35.3.29 states the statutory amendment that half would need and conditions the section on it, so the two drafts read the same provision consistently. | <b>Not drafted. Recorded at 7.35.3.7 as a question for department counsel.</b>                                                                                                                     |
| 7.35.3.7, page 1            | 7.35.3.14 A and C, page 9, with 7.35.3.20 D, page 14                              | The position of a student is not in doubt and is not raised in these documents. The practicum draft locates the provision of the medicine in the practitioner or the healing center, and 7.35.3.20 D provides that "students completing their practicums may be present during an administration session". The definition of student drafted here does not disturb that.                                                                                                                                                                                                                                                                            | <b>Settled in the practicum draft. Nothing here contradicts it.</b>                                                                                                                                |
| 7.35.3.13 B, page 8         | 7.35.3.14 B, 7.35.3.19 C, 7.35.3.20 H(5)                                          | The facilitator scope of work in 7.35.3.13 B is narrower than the authority the other three provisions confer, and "direct supervision" is not defined anywhere in the rule.                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <b>Not drafted. Any amendment has to be coordinated with the practicum draft.</b>                                                                                                                  |
| 7.35.3.17 A, pages 10 to 11 | Proposed 7.35.3.19 H, which exists only in that draft's re-lettering of 7.35.3.19 | Whether the consultation requirement is stated in hours or in cases, and whether it sits at the proposed 7.35.3.19 H or at 7.35.3.17 A, is open in the practicum document for Dr. Metz, Ms. Wilson and Dr. Leeman. As published, 7.35.3.19 NMAC runs A through G and has no Subsection H.                                                                                                                                                                                                                                                                                                                                                           | <b>Not drafted. 7.35.3.17 A is left exactly as published so that their answer governs.</b>                                                                                                         |
| 7.35.3.10 D(1), page 5      | 7.35.3.19 G(4), page 13, which that draft re-letters as 7.35.3.19 K               | Two waivers of the practicum hours requirement each set a 40-hour floor for applications received by December 31, 2027. For the same 40 hours of contact time, 7.35.3.10 D(1) requires "two separate group sessions" and 7.35.3.19 G(4) requires "A minimum of one group session". The practicum draft records the conflict at its 7.35.3.19 K and amends neither provision, on the ground that 7.35.3.10 is outside its scope.                                                                                                                                                                                                                     | <b>Not drafted here either. Conforming one to the other is a choice between two figures already in the rule, so neither document makes it and the conflict stands until the committee chooses.</b> |
| 7.35.3.16 A and C, page 10  | 7.35.3.18, pages 11 to 12                                                         | The third-party evaluation assesses the curriculum that 7.35.3.18 requires. Curing the evaluator conflict does not touch the curriculum, and the practicum draft's changes to the curriculum do not touch the conflict.                                                                                                                                                                                                                                                                                                                                                                                                                             | <b>Drafted here. No coordination needed.</b>                                                                                                                                                       |
| 7.35.3.20 heading, page 13  | 7.35.3.20 heading, page 13                                                        | The heading reads 7.34.3.20. The practicum draft corrects it.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <b>Not duplicated here. The correction stands in the practicum draft.</b>                                                                                                                          |

## Addendum C Defects recorded and not drafted, and why

Every defect this record found in the twenty-four sections, that this draft does not amend. The reason in each row is the reason no language is proposed, not an assessment of severity. Each has a review note at the provision named, stating the choices and who decides.

### Addendum C

### DEFECTS RECORDED AND NOT DRAFTED, AND WHY

| Provision                                               | Defect                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | Why nothing is drafted                                                                                                                                                                                         |
|---------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 7.35.3.5, page 1, with the history notes at page 19     | Twenty-six history notes carry the placeholder "xx/xx/2026"; the notes for 7.35.3.27 and 7.35.3.28 carry 9/22/2026. Under 7.35.3.5 a later date cited at the end of a section controls, so two sections would take effect before the rest has a date.                                                                                                                                                                                                                                                                           | No source supplies the intended effective date, and which way to conform is the department's to choose.                                                                                                        |
| 7.35.3.7, page 1                                        | Twelve of the sixteen undefined terms have no definition in any source, including healing center, 54 occurrences, and certifying clinician, 53 occurrences.                                                                                                                                                                                                                                                                                                                                                                     | Drafting a defined term with regulatory consequence from no source would be composing it. Addendum A records the slate.                                                                                        |
| 7.35.3.9 B, page 3                                      | A renewal application is due no less than 30 days before expiry, and the department has no deadline to decide it, so a certification can lapse while a timely renewal is pending. Nothing continues the certification in the interim.                                                                                                                                                                                                                                                                                           | The fix is a continued-validity provision, which is a new grant, and no source in this record proposes its terms.                                                                                              |
| 7.35.3.9 E(1) and F, page 3                             | A practitioner applicant must document a professional license "(e.g. PSY, LSW, LCSW)" with no stated scope of practice, and a facilitator applicant needs no license at all. The Wilson working redline comments "Also no scope here - what happened to therapy scope? It's missing - if DOH wants that, they need to include it." and "without specifying, they're setting themselves up to have athletic trainers and massage therapists apply and then not have a regulation to point to explain why that's not sufficient." | The redline raises the gap and supplies no list of qualifying licenses, and no other source in this record supplies one.                                                                                       |
| 7.35.3.8 C, page 2, with 7.35.3.9 A(1), page 2          | The department has 30 business days to decide a patient application and 30 calendar days to decide a certificant application.                                                                                                                                                                                                                                                                                                                                                                                                   | Conforming one to the other is a choice between two figures already in the rule, and both bind the department.                                                                                                 |
| 7.35.3.10 A(2) and A(3), pages 4 to 5                   | The list of out-of-jurisdiction programs populates only when an individual application relying on a program is approved, so it is empty at launch. A(3) refers to programs approved by Oregon and Colorado "as of December 31, 2027", which is after the December 31, 2027 waiver in D(1) has closed.                                                                                                                                                                                                                           | Both fixes are new grants of authority to the department, and no source in this record proposes their terms.                                                                                                   |
| 7.35.3.10 D(1), page 5, with 7.35.3.19 G(4), page 13    | The two 40-hour waivers set different group-session minimums, two against one.                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Conforming one to the other is a choice between two figures already in the rule. The practicum draft records the same conflict and amends neither provision, so neither document makes the choice. Addendum B. |
| 7.35.3.11 A(22)(d) and (e), and B(10) (d), pages 5 to 7 | The 15-minute threshold for a remote natural environment. The Wilson working redline asks twice whether it should be 30.                                                                                                                                                                                                                                                                                                                                                                                                        | A question in the source, not a recommendation, and no source supplies a figure.                                                                                                                               |
| 7.35.3.11, page 5                                       | The two-person universal requirement the Wilson working redline adds, which its author records did not reach the published rule.                                                                                                                                                                                                                                                                                                                                                                                                | The author records that she does not know where the provision belongs. Placing it would answer her question.                                                                                                   |
| 7.35.3.12 A(20) and B(1), pages 7 to 8                  | An application filed on or before December 31, 2027 may be approved without the third-party evaluation provided the evaluation is submitted by December 31, 2027, so the deferral shortens to nothing as that date approaches and is unavailable on the last day.                                                                                                                                                                                                                                                               | The fix is a period, and no source in this record supplies one. Tying it to the certification term would be a choice about how long a program may operate unevaluated.                                         |
| 7.35.3.12, pages 7 to 8, against the July 9, 2026 draft | The grounds for denying an educational program application present in the July 9 draft do not appear in the published rule. Finding M9.                                                                                                                                                                                                                                                                                                                                                                                         | Restoring deleted grounds is a substantive policy decision, and this record cannot show whether the deletion was deliberate.                                                                                   |

## Addendum C

## DEFECTS RECORDED AND NOT DRAFTED, AND WHY

| Provision                                                   | Defect                                                                                                                                                                               | Why nothing is drafted                                                                                                                                                            |
|-------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 7.35.3.17 A, pages 10 to 11                                 | The mentoring obligation, and whether it is stated in hours or cases and where it sits.                                                                                              | Open in the practicum document for three named people. Addendum B.                                                                                                                |
| 7.35.3.17 B, page 11                                        | The test-out price cap is a fraction of the price of "each of the educational modules", which assumes per-module pricing. The Wilson working redline strikes the subsection.         | Whether the option survives at all is the committee's decision, and a restated cap is worth drafting only if it does.                                                             |
| 7.35.3.20 A, page 13, with 7.35.3.21 A, page 15             | Healing centers must keep a roster of all qualified patients intended to use and who have used the location, and the department may interview patients.                              | Whether the roster should be kept in a form that does not identify patients turns on the department's data needs, which no source in this record states.                          |
| 7.35.3.20, page 13                                          | The term "registrant of another approved location", 10 occurrences, against the certification that 7.35.3.11 B issues.                                                               | The definition drafted at 7.35.3.7 ties the two words together. Conforming all 10 occurrences instead is a drafting choice, and this document does not make it.                   |
| 7.35.3.21, page 15                                          | No interval is set for department assessments, and none for repeating a third-party evaluation after the first.                                                                      | An interval is a figure and a demand on department capacity. No source supplies either.                                                                                           |
| 7.35.3.25 C and D(2), page 16                               | The administrative review committee decides a denied patient application and is constituted nowhere in 7.35.3 NMAC or 7.35.2 NMAC. Four occurrences, all in this section.            | Only the department can say who the committee is.                                                                                                                                 |
| 7.35.3.25 E, page 16                                        | "Except as otherwise provided by law, there shall be no right to judicial review of a decision by the administrative review committee." The Wilson working redline comments on it.   | Whether the provision is within the department's authority is a legal question for department counsel.                                                                            |
| 7.35.3.24, page 15                                          | The July 9, 2026 draft allowed a complaint from patients or staff; the published section allows one from a qualified patient or certificant, so staff who are neither have no route. | Restoring standing for staff is a policy decision. The confidentiality assurance the July 9 draft carried is restored in the redline above, because that text exists in a source. |
| 7.35.3.27, pages 16 to 19                                   | A certificant suspended immediately under Subsection A can be out of practice more than 135 days before a final decision, and there is no expedited track. Finding N5.               | An expedited schedule is a set of periods binding the department and the secretary, and no source supplies them.                                                                  |
| 7.35.3.8 D, 7.35.3.25 A, 7.35.3.27 C(7), pages 2, 16 and 17 | Three provisions describe review of a denial and their scopes overlap, so a patient applicant denied on the merits may have both an informal review and a hearing. Finding M23.      | The redline fixes the name of the proceeding only. Which track applies to which denial is a question of what process is owed.                                                     |

**Out of scope by decision.** The controlled-substance number requirement for certifying clinicians. It appears at Paragraph (3) of Subsection B of 7.35.3.8 NMAC, page 1, and at Paragraph (2) of Subsection D of 7.35.3.9 NMAC, page 3. Paragraph (2) is reproduced in the redline above because the renumbering of the paragraphs around it required it. It is reproduced as published and is not amended, and nothing is proposed about it.

## Addendum D Mechanical defects across all twenty-eight sections

Numbering, dates and drafting form, checked across the whole of 7.35.3 NMAC rather than only the sections these documents amend. Every count and every entry is produced from the text layer of the published rule each time this document is built.

### Addendum D

### MECHANICAL DEFECTS ACROSS ALL TWENTY-EIGHT SECTIONS

| Item                                                                   | Count   | Where                                                                                                                    | Corrected                                                                                                                                                                   |
|------------------------------------------------------------------------|---------|--------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Section headings reading 7.34.3 instead of 7.35.3                      | 5 of 28 | 7.34.3.13, 7.34.3.14, 7.34.3.20, 7.34.3.23, 7.34.3.25                                                                    | 7.35.3.13 in the document 4 above; 7.35.3.14 in the practicum draft; 7.35.3.20 in the practicum draft; 7.35.3.23 in the document 4 above; 7.35.3.25 in the document 4 above |
| History notes carrying a real effective date rather than a placeholder | 2 of 28 | 7.35.3.27 reads 9/22/2026, 7.35.3.28 reads 9/22/2026                                                                     | Not corrected. Recorded at 7.35.3.5 above.                                                                                                                                  |
| History notes omitting the "- N" new-section designator                | 9 of 28 | 7.35.3.11, 7.35.3.13, 7.35.3.14, 7.35.3.20, 7.35.3.22, 7.35.3.23, 7.35.3.24, 7.35.3.25, 7.35.3.26                        | Not corrected. Mechanical, and the designator is the department's to set.                                                                                                   |
| Numbering gap inside a subsection                                      | 1       | 7.35.3.9 D runs (1), (2), (4), (5), (6). There is no (3).                                                                | Renumbered in document 4 above.                                                                                                                                             |
| Subsections lettered "(A)" rather than "A."                            | 4       | 7.35.3.11 A, and 7.35.3.14 A, B and C. Letters found: A, B, C                                                            | 7.35.3.11 A in document 3 above. 7.35.3.14 in the practicum draft.                                                                                                          |
| Sentence with no verb governing the decision                           | 1       | 7.35.3.25 D(1), page 16. Carried over from the July 9, 2026 draft.                                                       | Corrected in document 4 above.                                                                                                                                              |
| Sentence that does not complete                                        | 1       | 7.35.3.18 F, page 12.                                                                                                    | In the practicum draft's scope. Corrected there.                                                                                                                            |
| Presiding official named inconsistently                                | 1       | 7.35.3.27 M reads "hearing examiner"; the rest of 7.35.3.27 reads "hearing officer".                                     | Corrected in document 4 above.                                                                                                                                              |
| Duplicated words                                                       | 1       | 7.35.3.24 reads "the electronic system designated by the department electronic system".                                  | Corrected in document 4 above.                                                                                                                                              |
| Spacing inside a heading                                               | 1       | 7.35.3.16 C reads "Conflict of -interest prohibitions". The July 9, 2026 draft read "Conflict-of-interest prohibitions". | Corrected in document 2 above.                                                                                                                                              |
| Class named in the lead-in but not in the operative words              | 1       | 7.35.3.27 B(8) opens "for certifying clinicians and practitioners" and then refers only to "the clinician".              | Corrected in document 4 above.                                                                                                                                              |
| Patient described as certified rather than enrolled                    | 1       | 7.35.3.27 C(1) reads "a certified patient".                                                                              | Corrected in document 4 above.                                                                                                                                              |

**Sources.** Rule as published: *docs/documents/rules-draft-2026-07-23-published.pdf*, 19 pages, 7.35.3.1 through 7.35.3.28. Prior board-meeting draft, used for new against carried-over determinations: *docs/documents/rules-draft-2026-07-09.pdf*. Defined terms: 7.35.2 NMAC as adopted effective June 23, 2026, at *source-text/7.35.2-NMAC-adopted-2026-06-23.txt*. Statute: the Medical Psilocybin Act, Senate Bill 219, 57th Legislature, First Session, 2025, as passed; Section 1 provides that Sections 1 through 11 of the act may be cited as the Medical Psilocybin Act, and those section numbers are the ones cited here. This record does not verify any NMSA 1978 section number. Working redline: Denali Wilson, NMAC 7.35.3, July 25, 2026, tracked changes and comments as exported from the document file. July 17, 2026 transcripts, morning Advisory Board and afternoon Training and Education Committee, both labeled "UNOFFICIAL AUTO-GENERATED TRANSCRIPT. NO SPEAKER ATTRIBUTION."; no speaker is named from either transcript in this document. Inventory relied on and re-verified: *analysis/july23-rule-concerns.md*.

**Method.** The left column reproduces the rule as published, verbatim, with line breaks introduced by the PDF collapsed to single spaces and hyphenation introduced by a line break rejoined. Nothing else is

altered. Every block was checked against the text layer of the published rule by exact contiguous match, and the build aborts if any block fails. *amendments-remainder/audit.py* re-checks every verifiable claim in these documents and exits non-zero on any failure; *amendments-remainder/AUDIT.md* is its output.

**Status.** Working draft v1, document 2 of 4. Not a filing, not submitted, and not adopted rule text. Nothing in *amendments/* or *docs/* was modified by this work.